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To be brief: the *entire point* of copyright law is to make it so that if you take the time and put in the work to create something, you can put it out into the world and profit off it without fear that someone with access to more time and resources will see it, agree that it's good, and then flood the market with replicas and drown you. *Your work should pay off*, and if you use someone else's work to make your product, you should pay them for it.

Generative AI should not get a pass, here. If you have to have a license to use an image directly, you should need a license *specifically* to feed that image to a machine learning model, as well – it's a sufficiently different use-case, a general-purpose license should not cover it. You are generating profit off of someone else's work – if the model cannot provide a catalog of the images used to train it, as well as appropriate licensing for *all* of them, then it's output should be assumed to be in violation of copyright law for commercial use.

If generative AI firms, as a business, cannot continue to operate as they have under such a ruleset – then the technology is not yet industry-viable. The fact that something *is possible, and has been done*, has no relation to whether or not it should be legal. Legalizing theft could open many job opportunities and feed many impoverished families – but the cons outweigh said pros, to most. GenAI has been built to the place it currently resides on the backs of *millions* of hours worth of unpaid, unlicensed and unwilling work. Under the current legal framework, it is a system for destroying livelihoods to produce cheap knock-offs and mountains of ecological waste.

In short, the fundamental technology behind generative AI is not a bad thing. It *does* represent remarkable possibilities, *eventually*. But the existing business practices surrounding it are the result of a completely unregulated environment, and as such are *as harsh and harmful to the average citizen as is possible under general law*. The fact that they *have been* allowed up to this point does not mean they should be the baseline going forward – the behavior displayed and harm caused should be the *reason* for, and guidelines on, what must be restricted and why. We have evidence, *now*, of the harm the industry can and *will do, at steadily increasing scale*, if not subjected to actual regulation equivalent to every other industry.

Thank you for your time.